

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202103616	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/25/2021 9:00 AM, Friday, 05/28/2021 6:00 AM, Friday, 05/28/2021 9:00 AM	Location of Incident: § 87(2)(b) Newburgh, NY and Central Bookings	Precinct:	18 Mo. SOL 11/28/2022	EO SOL 11/28/2022	
Date/Time CV Reported Wed, 06/09/2021 12:00 AM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Tue, 06/15/2021 10:18 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michael McNelis	01232	920592	DA QNS
2. An officer			
3. SGT Andrew Russell	05607	939388	WARRSEC
4. DT3 Neil Conde	00609	943100	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Jeanbern Remy	02998	939292	DA QNS
2. DT3 John Maser	07121	942142	DA QNS
3. DT3 Bryan Post	03921	951076	WARRSEC
4. SGT Kyle Riegel	02459	952165	101 PCT
5. DT3 Ryan Dunn	06727	944526	WARRSEC
6. DT3 Jared Pilkington	03688	951059	WARRSEC
7. DT3 Michael Schulman	05456	951223	WARRSEC
8. DT3 Christopher Mcgee	02293	931819	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Michael McNelis	Abuse: On May 25, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis took a photograph of § 87(2)(b)	
B.SGT Andrew Russell	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Sergeant Andrew Russell threatened to damage § 87(2)(b)'s property.	
C. An officer	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, an officer threatened § 87(2)(b) with the use of force.	

Officer(s)	Allegation	Investigator Recommendation
D.SGT Andrew Russell	Abuse: On May 28, 2021, Sergeant Andrew Russell entered § 87(2)(b) in Newburgh, New York.	
E. An officer	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, an officer damaged § 87(2)(b)'s property.	
F. An officer	Force: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, an officer pointed his gun at § 87(2)(b).	
G.DT3 Neil Conde	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Neil Conde refused to show the arrest warrant to § 87(2)(b).	
H.DT3 Michael McNelis	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis refused to show the arrest warrant to § 87(2)(b).	
I.DT3 Michael McNelis	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis inappropriately touched § 87(2)(b).	
J.DT3 Michael McNelis	Abuse: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis made a sexually suggestive gesture towards § 87(2)(b).	
K.DT3 Michael McNelis	Abuse: On May 28, 2021, at Queens Central Bookings, Detective Michael McNelis forcibly touched § 87(2)(b).	

Case Summary

On June 9, 2021, § 87(2)(b) filed with complaint with the CCRB via mail. On April 14, 2022, this case was added to the sensitive case list due to phase 2 allegations.

On May 25, 2021, at approximately 9:00 a.m., Detectives Michael McNelis and Jeanbern Remy, of the Queens District Attorney's Office, went to § 87(2)(b) in Newburgh, New York, regarding a criminal investigation. Det. McNelis took a photograph of § 87(2)(b) from outside of her building (**Allegation A: Abuse of Authority-Photography**, § 87(2)(g)).

On May 28, 2021, at approximately 6:00 a.m., Det. McNelis and Detective John Maser, also of the Queens District Attorney's Office, joined the Queens Warrants Squad in executing § 87(2)(b)'s arrest warrant at § 87(2)(b). The Queens Warrants Squad consisted of Sergeant Andrew Russell, Detective Neil Conde, Detective Jared Pilkington, Detective Ryan Dunn, Det. Michael Schulman, Detective Christopher McGee, Detective Kyle Riegel, and Police Officer Bryan Post. (Det. Riegel has since been promoted to sergeant, and PO Post has since been promoted to detective). The officers that approached § 87(2)(b)'s apartment door—Sergeant Andrew Russell, Detective Neil Conde, Detective Jared Pilkington, Detective Ryan Dunn, Det. Michael Schulman, Detective Christopher McGee—were banging on her door. Sgt. Russell stated, "Don't make us take the door" (**Allegation B: Abuse of Authority-Threat to damage property**, § 87(2)(g)). An officer allegedly stated that § 87(2)(b) would get hurt when breaking the door down (**Allegation C: Abuse of Authority-Threat of force**, § 87(2)(g)). While the officers attempted to gain entry, § 87(2)(b) was on the phone with her friends, § 87(2)(b) and § 87(2)(b). Her neighbors § 87(2)(b) and § 87(2)(b) allegedly could have witnessed the incident from outside of § 87(2)(b) apartment. The superintendent, § 87(2)(b) provided the officers the keys to § 87(2)(b)'s apartment, after which the Queens Warrants Squad officers gained entry into the apartment and walked inside (**Allegation D: Abuse of Authority-Entry of Premises**, § 87(2)(g)). In attempting to gain entry, the officers allegedly caused damage to § 87(2)(b)'s apartment door, where pieces of paint and sheetrock were left on the floor (**Allegation E: Abuse of Authority-Property Damaged**, § 87(2)(g)).

Upon entering, one of the officers allegedly had their firearm pointed (**Allegation F: Force-Gun Pointed**, § 87(2)(g)). § 87(2)(b) asked to see her arrest warrant and Det. Conde allegedly did not present it to her (**Allegation G: Abuse of Authority-Refusal to show arrest warrant**, § 87(2)(g)). When § 87(2)(b) was escorted outside, she requested to see the warrant, and Det. McNelis allegedly showed § 87(2)(b) a copy of her criminal history instead of the warrant (**Allegation H: Abuse of Authority-Refusal to show arrest warrant**, § 87(2)(g)). As Det. McNelis placed § 87(2)(b) in the rear of his police vehicle, he kissed her on the cheek (**Allegation I: Sexual Misconduct (Inappropriate Touching)**, § 87(2)(g)). Just after fastening § 87(2)(b)'s seatbelt, Det. McNelis kissed § 87(2)(b) on the cheek a second time (**Subsumed in Allegation I**). Det. McNelis allegedly placed a piece of gum in § 87(2)(b)'s mouth (**Allegation J: Sexual Misconduct (Sexual Harassment, Gesture)**, § 87(2)(g)).

On the same day, at approximately 9 a.m., the Queens DA detectives and § 87(2)(b) arrived at Queens Central Bookings. As § 87(2)(b) stood at the rear of the vehicle, Det. McNelis allegedly stood behind § 87(2)(b) and unexpectedly lifted her pants by the waist band without her consent (**Allegation K: Sexual Misconduct (Forcible Touching)**, § 87(2)(g)).

§ 87(2)(b) was apprehended on May 28, 2021, regarding Arrest Warrant § 87(2)(b) (**BR01**). The charges noted on her arrest report included aggravated harassment in the second degree, as a hate crime, and aggravated harassment in the second degree (**BR34**).

Body-worn camera footage was unavailable for this incident, as officers from the Warrant Squad and Queens District Attorney's Office had not been equipped with cameras. Det. McNelis provided a video taken when transporting § 87(2)(b) to Queens Central Bookings (**BR26, BR27**). There was no other video of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: On May 25, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis took a photograph of § 87(2)(b)

§ 87(2)(b) (BR02) stated that she noticed an unmarked vehicle parked in front of her apartment building with two males inside taking photos of her. She believed they also recorded her, as they held their cellphones up toward § 87(2)(b) for an extended period of time.

Det. McNelis (BR03) stated that, upon receiving and beginning his investigation into § 87(2)(b)'s case, where she was threatening a bureau chief at the Queens District Attorney's office, he located multiple potential addresses for § 87(2)(b). On the date of this incident, he and Det. Remy went to Newburgh to confirm § 87(2)(b)'s address with the Newburgh Police Department. The Newburgh PD was familiar with § 87(2)(b) and provided her address. When Det. McNelis and Det. Remy visited § 87(2)(b)'s apartment building, they noticed a female screaming and yelling through the window of her apartment. Det. McNelis deduced the female was § 87(2)(b) given that her voice matched the threatening voicemails that were part of the investigation. When § 87(2)(b) noticed the officers, she began making racial slurs toward them, including, "Uncle Tom," and something else about white guys. Det. McNelis took a photograph of § 87(2)(b) to have documentation of her living at her address. Det. McNelis did not observe Det. Remy taking photographs or videos. Once the photo was taken, the detectives left the location.

Det. Remy (BR04) stated that he and Det. McNelis went to Newburgh to locate an address for § 87(2)(b). Upon their arrival, a female individual stuck her head out of the window. The detectives believed the female was § 87(2)(b) since she was wanted for making threats and shouted at the officers when she noticed them. Det. McNelis took a video of § 87(2)(b) to document her presence at the address. Det. Remy did not take any videos or photographs. When § 87(2)(b) noticed the officers, she called Det. Remy an "Uncle Tom," and Det. McNelis, "the devil."

A response to a request for any videos or photographs taken of § 87(2)(b) indicated that Det. McNelis possessed a video that was too large to virtually send (BR25). Upon obtaining and reviewing the video, it captured only the drive to Queens Central Bookings after § 87(2)(b) was apprehended on May 28, 2021 (BR26, BR27), and did not contain any photos or videos taken on May 25, 2021.

The Queens DA's DD5s pertaining to this incident note that, on May 25, 2021, Det. McNelis, and Det. Remy went to § 87(2)(b) where they observed § 87(2)(b) at her window. When she noticed the RMP, § 87(2)(b) addressed the officers as "Uncle Tom" and "honky" (BR05). There are no entries documenting any photographs or videos taken of § 87(2)(b).

Patrol Guide Procedure 219-32 notes, under operational considerations, that members are permitted, but not required, to use department smartphones/tablets to photograph and/or video record encounters with the public, as they may help provide context to enforcement encounters (BR06).

Det. McNelis took a photograph of § 87(2)(b) who had an active arrest warrant for second degree aggravated harassment. As noted in the patrol guide, officers are allowed to take photographs on their department-issued cellphone during encounters with the public. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Sergeant Andrew Russell threatened to damage § 87(2)(b)'s property.

Allegation (C) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, an officer threatened § 87(2)(b) with the use of force.

Allegation (D) Abuse of Authority: On May 28, 2021, Sergeant Andrew Russell entered § 87(2)(b) in Newburgh, New York.

Allegation (E) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective an officer damaged § 87(2)(b) s property.

Allegation (F) Force: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, an officer pointed his gun at § 87(2)(b)

§ 87(2)(b) (BR02) stated that she heard banging coming from her front door on the morning of this incident. § 87(2)(b) s front door was new and not completely installed; therefore, there was loose plaster and gaps around the door frame. Multiple voices announced themselves as NYPD and stated that they had a warrant for § 87(2)(b) s arrest. The officers stated § 87(2)(b) s name and confirmed that they knew she was inside. As the officers banged on the door, § 87(2)(b) heard things falling on the floor outside of the apartment, which she assumed was chipped paint. One of the officers said that they were going to break the door down and § 87(2)(b) would get hurt. One of the officers mentioned getting a battering ram. After about 35 minutes, the officers used a key to enter the apartment. No one informed § 87(2)(b) that her key would be given to the officers. An officer, who § 87(2)(b) believed was Det. McNelis, opened the door slowly.

§ 87(2)(b) saw approximately 12 officers in riot gear. The officers simultaneously told § 87(2)(b) to put her phone down, after which one of the officers, described as a 5'9" tall white male with a slim build, pointed his weapon at § 87(2)(b). He pointed his gun for the first few seconds of the interaction. All of the officers walked inside of § 87(2)(b) s apartment. Two officers, one of which was Det. McNelis, followed her into her bedroom, while the remaining officers stayed in the living room. § 87(2)(b) did not see any officers searching her apartment. After hanging her phone in the receiver in her bedroom, § 87(2)(b) voluntarily walked out of the apartment with the officers, where she noticed pieces of paint and sheet rock on the floor outside of her apartment door. § 87(2)(b) believed the remnants on the floor came from her doorframe. § 87(2)(b) did not have photos of the alleged damage to her door.

§ 87(2)(b) § 87(2)(b) s neighbor (BR28), stated that he heard banging coming from § 87(2)(b) s apartment door on the morning of this incident. When he opened his door, he saw about eight police officers by § 87(2)(b) s apartment. § 87(2)(b) was unable to describe any of the officers. The officer closest to § 87(2)(b) s door had a silver pry bar that he held against the hinges of the door, apparently trying to force the door open. The officers were calling § 87(2)(b) s name, stating that they knew she was inside. The officers also said that they did not want to have to break the door down. § 87(2)(b) re-entered his apartment and heard continuous banging on § 87(2)(b) s door for about two total hours. § 87(2)(b) did not hear the officers make any other statements. § 87(2)(b) left his apartment and the area before the officers gained entry. He did not see any damage to § 87(2)(b) s door when he left his apartment.

§ 87(2)(b) § 87(2)(b) s friend (BR35), provided an unverified statement to the CCRB. § 87(2)(b) was on the phone with § 87(2)(b) during a portion of this encounter. § 87(2)(b) called § 87(2)(b) when the officers first arrived at her apartment, during which § 87(2)(b) heard loud banging coming from the front door. She heard voices saying, "§ 87(2)(b), we know you're in there. Open the door," repeatedly. She also heard someone say, "We're going to break the door down." § 87(2)(b) was unable to deduce whether the voices making the statements were the same. § 87(2)(b) heard § 87(2)(b) mention that the officers entered her apartment using a key, but she did not hear any conversation after the entry. The call disconnected shortly after the officers entered the apartment.

§ 87(2)(b) the superintendent of § 87(2)(b) provided an unverified statement to the CCRB (BR07). He stated that when he drove to the location, he saw multiple officers standing in the hallway in front of § 87(2)(b) s apartment. He heard the officers banging on § 87(2)(b) s door, telling her to open the door. He did not hear them make any other statements. A white male told § 87(2)(b) that he would either have to open the door for them or they would have to break the door. § 87(2)(b) provided the keys to § 87(2)(b) s apartment. He did not see the officers enter the apartment.

§ 87(2)(b) friend, "§ 87(2)(b)" and her neighbor, § 87(2)(b) did not provide statements to

the investigation.

Det. McNelis (**BR03**) stated that on the morning of the arrest warrant execution, he and Det. Maser met with the Queens Warrant Squad at the Newburgh Police Department. They shared § 87(2)(b)'s history, including what led to her arrest warrant. After the meeting, the parties went to § 87(2)(b)'s apartment. Det. McNelis and Det. Maser remained outside of § 87(2)(b)'s apartment building, while the Queens Warrants Squad went to apprehend § 87(2)(b). Det. McNelis heard the officers knocking and telling § 87(2)(b) to open the door; however, he did not hear anyone state that they would break the door down or hurt her. He did not recall any damage being done to § 87(2)(b)'s door. After about 20 minutes, the Queens Warrants detectives escorted § 87(2)(b) out of the building in handcuffs. Neither Det. McNelis nor Det. Maser entered § 87(2)(b)'s apartment.

Det. Maser's statement (**BR08**) was generally consistent with Det. McNelis's regarding the meeting prior to the warrant execution, his failure to hear any statement about damaging § 87(2)(b)'s door and her being hurt, and the lack of damage observed on § 87(2)(b)'s door.

Sgt. Russell's statement (**BR09**) was generally consistent with Det. McNelis's regarding the meeting prior to traveling to § 87(2)(b). Upon arriving, Sgt. Russell assigned Det. Riegel and PO Post to rear security to ensure no one came in or out of the rear exits. Meanwhile, Det. Conde, Det. Pilkington, Det. Dunn, and Det. Schulman accompanied Sgt. Russell to § 87(2)(b)'s apartment. The Newburgh PD officers, and the Queens DA detectives remained outside. Sgt. Russell initiated contact attempts by knocking on § 87(2)(b)'s apartment door gently. There was no response, but Sgt. Russell observed a shadow moving through the one-inch gap underneath § 87(2)(b)'s apartment door. He also heard footsteps and § 87(2)(b) speaking behind the door. The other detectives also knocked on the door when Sgt. Russell would periodically step away to send radio communications. The officers announced themselves as NYPD and mentioned the warrant for § 87(2)(b)'s arrest. Sgt. Russell held a shield and stated to § 87(2)(b) "Don't make us take the door." The Queens Warrants Squad did not make any attempts to force their entry into § 87(2)(b)'s apartment. Someone stated, "please open up. We don't want anyone to get hurt," which is possible with forced entries. He did not recall who specifically stated that.

Sgt. Russell called the management company of § 87(2)(b)'s building requesting a key for the door. The superintendent approached and provided the key after Sgt. Russell mentioned the arrest warrant. Sgt. Russell used the key to open the door and announced his entry. § 87(2)(b) was standing by the door with a calm demeanor. He described her as pleasant. Det. Conde had a copy of the warrant, which contained a photograph of § 87(2)(b). Sgt. Russell, Det. Conde, and Det. Pilkington walked into the apartment. Sgt. Russell did not recall if Det. Schulman entered the apartment, and he did not believe Det. Dunn stepped inside. Sgt. Russell took the lead and did not see if the detectives had their weapons pointed. He did not point his weapon. Sgt. Russell remained by the threshold of the apartment, while Det. Conde and Det. Pilkington followed § 87(2)(b) into her bedroom, as she grabbed her belongings. § 87(2)(b) did not protest the detectives being in her bedroom. Once she got her shoes, Det. Conde placed her in handcuffs and walked her outside. They were inside of the apartment for about five minutes. Her calm demeanor continued throughout the entire time she was with the Queens Warrants Squad officers.

Det. Conde's statement (**BR10**) was generally consistent with Sgt. Russell's regarding the meeting prior to their traveling to § 87(2)(b) the kind of contact attempts made, the observations made through the door, the lack of damage observed, and the absence of an attempted forced entry. Det. Conde did not recall who, if anyone, was present for the contact attempts to § 87(2)(b) apart from Sgt. Russell and himself. Det. Conde did not remember anyone making a statement about breaking the door down and § 87(2)(b) getting hurt. It may have been explained that the detectives did not want to break the door, but Det. Conde did not specifically recall. The Queens Warrant Squad had a shield and a ram with them, but they did not attempt to use them. After receiving no response, the superintendent showed up with the key to § 87(2)(b)'s apartment. Det. Conde did not know how the superintendent became involved. He assumed a tenant called him to the location. Sgt. Russell was primarily speaking with the superintendent, where he mentioned

that they had an arrest warrant, after which the superintendent willingly provided the keys. Sgt. Russell used the key to enter § 87(2)(b)'s apartment, which he announced. Sgt. Russell and Det. Conde entered the apartment. Det. Conde was not sure who else entered the apartment. Det. Conde did not point his weapon or see any other officer do so. The officers explained that they had a warrant for § 87(2)(b)'s arrest and informed her that she has to go with them. § 87(2)(b) got dressed and brushed her teeth. Det. Conde followed her into her bedroom and bathroom, as she was in custody. Det. Conde believed Sgt. Russell and perhaps others also followed her around the apartment. § 87(2)(b) did not object to officers following her around the apartment. An officer, perhaps Det. Conde, placed § 87(2)(b) in handcuffs. The Queens Warrants Squad escorted § 87(2)(b) outside.

Det. Pilkington's statement (**BR31**) was generally consistent with Sgt. Russell's regarding the meeting prior to their traveling to § 87(2)(b) the kind of contact attempts made, the observations made through the door, the lack of damage observed, and the absence of an attempted forced entry. Det. Pilkington was unsure if other officers brought their equipment, including a shield. Det. Pilkington did not hear or state that they would "break down the door and § 87(2)(b) will get hurt." One of the officers, who Det. Pilkington did not recall who, obtained the key to the apartment from the superintendent. After an officer opened the door, Det. Pilkington did not have his weapon pointed, nor did he see any other officer point their weapon. One of the detectives had a copy of § 87(2)(b)'s warrant, which had her photo on it. Det. Pilkington believed someone confirmed that the person on the photo was § 87(2)(b). Det. Pilkington, Det. Conde, and Sgt. Russell entered the apartment. There may have been additional detectives that entered the apartment. The officers escorted § 87(2)(b) outside and transferred custody to the Queens DA detectives.

Det. Dunn's statement (**BR11**) was generally consistent with Sgt. Russell's regarding the kind of contact attempts made, the lack of damage observed, and the absence of an attempted forced entry. Det. Dunn and Det. McGee remained by the entrance, while Sgt. Russell, Det. Pilkington, and Det. Conde made contact attempts. The officers made statements like, "we know you're in there," "we don't want to have to break the door," "we have a warrant." Det. Dunn did not remember who made specific statements. When the officers gained entry, Det. Dunn did not recall him or any other officer drawing or pointing their weapons. Upon entry, he realized he was not needed and exited the apartment.

Det. Schulman's statement (**BR12**) was generally consistent with Sgt. Russell's regarding the kind of contact attempts made, the observations made through the door, the lack of damage observed, and the absence of an attempted forced entry. Det. Schulman did not remember anyone making statements about forcing their entry or her getting hurt. Det. Schulman did not remember if the superintendent opened the door himself or if he handed someone the key to open the door. Sgt. Russell, Det. Pilkington, Det. Conde, and Det. Schulman entered the apartment.

Det. McGee's statement (**BR13**) was generally consistent with Sgt. Russell's regarding the meeting prior to their traveling to § 87(2)(b) the kind of contact attempts made, the lack of damage observed, and the absence of an attempted forced entry. Det. McGee was with Det. Dunn by the main entrance and did not have a clear view of § 87(2)(b)'s front door. He did not hear anyone say that they would "break the door down and § 87(2)(b) would get hurt." Det. McGee did not draw or point his weapon, nor did he see any other officer do so. After taking a couple of steps inside, he immediately realized that there were sufficient officers present, after which he left the apartment.

PO Post's statement (**BR14**) was generally consistent with Sgt. Russell's regarding the meeting prior to traveling to § 87(2)(b). Sgt. Russell assigned PO Post to rear security. Given this assignment, PO Post could not see or hear what transpired with the officers making contact attempts. He did not see anyone enter the apartment or see any damage to § 87(2)(b)'s door. PO Post did not ever enter the apartment or point his weapon.

Det. Riegel's statement (**BR15**) was consistent with PO Post's statement.

§ 87(2)(b) had an active arrest warrant as of May 26, 2021, pertaining to aggravated harassment and a hate crime (BR01).

The Queens DA DD5s pertaining to this case (BR05) note that on May 25, 2021, Det. McNelis and Det. Remy obtained § 87(2)(b)'s address after visiting the Newburgh Police Department. The Queens Warrants Squad DD5s (BR16) note that, on May 27, 2021, upon receipt of § 87(2)(b)'s case, her last known address was § 87(2)(b) in Newburgh, NY. On May 28, 2021, during the execution of § 87(2)(b)'s warrant, the superintendent provided the key to § 87(2)(b)'s apartment, where she was apprehended without incident.

Given that Sgt. Russell was the supervising officer for the Queens Warrant Squad, the entry allegation has been pleaded against him.

Patrol Guide Procedure 208-42 (BR17) notes that when arresting a person for whom a warrant has been issued, officers must inform the defendant of the warrant and offense charged, present the warrant, announce authority, and purpose, and make a forced entry into premises, as necessary.

New York Consolidated Law Service Section 120.80(4) (BR18) notes that when executing a warrant of arrest, officers may enter any premises in which they reasonably believe the defendant to be present. Before such entry, officers must give or make a reasonable effort to give notice of their authority and purpose.

Onderdonk v. State, 170 Misc. 2d 155 found that officers are allowed to cause damage to property when it is reasonably necessary to effectuate a warrant (BR32).

Sgt. Russell and his team all consistently stated that there were no attempts to force entry into § 87(2)(b)'s apartment. However, the patrol guide allows officers to conduct a forced entry, if necessary, when executing an arrest warrant. § 87(2)(g)

The Queens Warrants Squad officers consistently stated that they heard and observed § 87(2)(b) near her apartment door when making contact attempts. In the event that the officers needed to force entry, which the patrol guide allows, it was possible that § 87(2)(b) could have been injured given her close proximity to the door. § 87(2)(g)

The patrol guide and the New York CLS allow officers to enter a home when executing an arrest warrant if they reasonably believe that the defendant is inside. As mentioned in Allegation A, as well as the discussed DD5s, investigative steps led the officers to believe that § 87(2)(b)'s last known address was § 87(2)(b) which was confirmed when Det. McNelis visited the location on May 25th. Additionally, the Queens Warrant Squad consistently mentioned hearing and seeing movement inside of the apartment prior to gaining entry. § 87(2)(g)

While the existence of the damage to § 87(2)(b)'s apartment door is disputed, § 87(2)(b) only heard sounds that implied to her that the officers were damaging the door, which her neighbor, § 87(2)(b) did not witness. § 87(2)(g)

§ 87(2)(g)

Sgt. Russell, who is the only officer that mentioned carrying a shield, denied pointing his weapon during this incident. § 87(2)(g)

Allegation (G) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Neil Conde refused to show the arrest warrant to § 87(2)(b)

§ 87(2)(b) (BR02) stated that when the officers entered her apartment, she asked for the warrant and the officer, who § 87(2)(b) believed to be Det. McNelis, told her he would show her downstairs. No one presented § 87(2)(b) with a copy of the warrant prior to her being taken into the custody of the Queens DA detectives.

Sgt. Russell (BR09) did not recall § 87(2)(b) requesting to see an arrest warrant from anyone.

Det. Conde (BR10) stated that all of the Queens Warrants officers had a copy of § 87(2)(b)'s warrant, which had her picture on it. Det. Conde showed § 87(2)(b) the warrant during this incident. He did not witness any other officer refusing to present the warrant to § 87(2)(b).

Det. Pilkington (BR31) stated that § 87(2)(b) did not ask him to see a copy of her warrant. He did he recall her asking any other member of his team to see the warrant.

Det. Dunn (BR11) did not speak with § 87(2)(b) directly during this incident. Det. Dunn assumed one of the Queens Warrants detectives had a copy of the arrest warrant, but he was not certain. He did not witness § 87(2)(b) asking anyone to see the arrest warrant.

Det. Schulman (BR12) did not remember if § 87(2)(b) asked to see a copy of her warrant. He did not have a copy of the warrant. He did not see anyone telling § 87(2)(b) that they would not show her the warrant.

Det. McGee (BR13) stated that there was a physical copy of the warrant on scene, but Det. McGee did not remember who possessed it. He did not interact with § 87(2)(b) nor did he know if anyone said or showed her anything, including the warrant.

Det. Post (BR14) did not hear § 87(2)(b) ask for an arrest warrant nor did he refuse to show her a copy.

Det. Riegel (BR15) did not have a copy of the warrant, nor did he recall § 87(2)(b) asking him to see a copy. He did not see § 87(2)(b) request to see a warrant from any other officer.

Det. McNelis (BR03) did not enter § 87(2)(b)'s apartment when the Queens Warrants Squad executed her arrest warrant. He did not witness what transpired inside of her apartment.

Patrol Guide Procedure 208-42 (BR17) notes that when arresting a person for whom a warrant has been issued, officers must inform the defendant of the warrant and offense charged, present the warrant, announce authority, and purpose, and make a forced entry into premises, as necessary.

Det. Conde, who is the only officer that acknowledged possessing a copy of § 87(2)(b)'s arrest warrant, stated that he presented § 87(2)(b) with the warrant, which is in direct contrast with § 87(2)(b)'s statement. § 87(2)(g)

Allegation (H) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis refused to show the arrest warrant to § 87(2)(b)

Allegation (I) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis inappropriately touched § 87(2)(b)

Allegation (J) Abuse of Authority: On May 28, 2021, at § 87(2)(b) in Newburgh, New York, Detective Michael McNelis made a sexually suggestive gesture towards § 87(2)(b)

§ 87(2)(b) (BR02) stated that after she was placed in the rear of the officers' vehicle, Det. McNelis informed her that she was only being arrested for a misdemeanor and that she would go home soon. Two officers placed § 87(2)(b) in handcuffs, which were fastened in front of her. § 87(2)(b) asked Det. McNelis for a hug, which he complied with. § 87(2)(b) did not remember the specifics of the hug and could not physically describe it. As Det. McNelis leaned into § 87(2)(b)'s body, he kissed her on the cheek with his lips for about a millisecond. § 87(2)(b) did not request the kiss, nor did Det. McNelis mention the kiss. Det. Maser was nearby during the embrace. § 87(2)(b) denied Det. McNelis kissing her at any other point in the incident. Shortly after the kiss, Det. McNelis asked § 87(2)(b) if she wanted a piece of gum, which she confirmed. Det. McNelis placed the gum in § 87(2)(b)'s mouth. § 87(2)(b) asked for her arrest warrant. Det. McNelis presented her "rap sheet," § 87(2)(b). Det. McNelis claimed the "rap sheet" was the warrant. Prior to driving off, none of the officers on scene presented § 87(2)(b) with a copy of her arrest warrant.

Det. McNelis (BR03) (BR19) stated that when the Queens Warrants Squad brought § 87(2)(b) out of the apartment, she was in handcuffs. He did not remember if she was front-cuffed or rear-cuffed. § 87(2)(b) was "ranting and raving," which he described as a highly emotional state that manifested as screaming and tensing her body. Det. McNelis attempted to engage in dialogue with § 87(2)(b) in an attempt to calm her down. § 87(2)(b) was talking and screaming over Det. McNelis. § 87(2)(b) said something about listening or complying if Det. McNelis kissed her. He did not remember the exact wording of her request. Det. McNelis did not "really want to," but he kissed her on the cheek for de-escalation purposes. Det. McNelis was concerned that § 87(2)(b) would physically approach Det. McNelis and Det. Maser if he did not de-escalate the situation. Det. McNelis denied that § 87(2)(b) asked for a hug and that they hugged during this encounter. Det. McNelis kissed § 87(2)(b) on the right side of her face by her temple. His lips made contact with § 87(2)(b)'s cheek for milliseconds. He did not make any other physical contact with her while he kissed her on the cheek. He described the action as "a polite kiss on the cheek."

After he kissed her cheek, § 87(2)(b) was immediately compliant, and he was able to speak with her. Det. McNelis placed handcuffs on § 87(2)(b) in front of her body. Det. McNelis brought § 87(2)(b) to the rear of the vehicle, and she sat down inside. He reached across her body to fasten her seatbelt. Apart from securing the seatbelt, Det. McNelis did not have further physical contact with § 87(2)(b). As Det. McNelis explained why she was being taken into custody, § 87(2)(b) told Det. McNelis that she was going to harm herself and requested another kiss. Given that there was a metal partition in the vehicle, which § 87(2)(b) could reach, Det. McNelis was concerned for her safety. Therefore, he kissed § 87(2)(b) on the cheek, in the same place and in the same manner as the first kiss. § 87(2)(b) calmed down again. Aside from de-escalating the situation, there was no other reason why Det. McNelis kissed § 87(2)(b). He stated that he has never encountered a similar situation with a prisoner requesting kisses, nor has he used kisses as a de-escalation technique in the past. Det. McNelis did not offer § 87(2)(b) gum, nor did he remember her requesting any. He did not recall putting a piece of gum in her mouth. § 87(2)(b) did not ask Det. McNelis to see a copy of the warrant. He informed her that there was a warrant in the vehicle, but he did not present it to her. He did not know if she asked the Warrants Squad or anyone else to see the warrant.

Det. Maser (BR08) stated that § 87(2)(b) did not ever ask him to see an arrest warrant. He did not know if anyone showed § 87(2)(b) her warrant. He was unsure if Det. McNelis had a copy of the warrant. When the Queens Warrants Squad transferred custody, § 87(2)(b) appeared to be most comfortable speaking with Det. Maser and Det. McNelis, but Det. Maser was unable to note anything that he or Det. McNelis did to cause that. Det. McNelis brought § 87(2)(b) to the back of the vehicle, while Det. Maser went into the driver's seat, as he was the operator. Given his positioning, Det. Maser did not witness any physical interaction between Det. McNelis and § 87(2)(b) as she was being placed into the vehicle or when she was just placed inside. Det. Maser did

not hear § 87(2)(b) request anything from Det. McNelis. Det. McNelis told Det. Maser that § 87(2)(b) asked Det. McNelis for a kiss on the cheek before she got into the vehicle in Newburgh, which he gave her. He did not see or hear the kiss. Det. McNelis did not tell him anymore details about the kiss. Det. McNelis did not share that he kissed § 87(2)(b) any other time or that she asked for another kiss at any point. Det. Maser did not know why § 87(2)(b) asked for a kiss. He testified that he believed § 87(2)(b) is “crazy” or “not all there.” Based on what Det. McNelis told him, the kiss on the cheek appeared to be what calmed § 87(2)(b) down.

Sgt. Russell (**BR09**) stated that once they were outside, § 87(2)(b) became irate with the Newburgh PD and the superintendent. The Queens Warrants detectives walked § 87(2)(b) over to the Queens DA detectives, who placed her into the rear of their vehicle. She calmed down when she was in custody of the Queens DA detectives and learned that they were NYPD. Aside from placing § 87(2)(b) into the vehicle, Sgt. Russell did not see any additional interactions between the Queens DA detectives and § 87(2)(b).

Det. Conde’s statement (**BR10**) was consistent with Sgt. Russell’s regarding § 87(2)(b)’s shift in demeanor upon exiting her apartment. The Queens Warrants Squad transferred custody to the two Queens DA detectives, uncuffing § 87(2)(b) and placing the Queens DA handcuffs on her. Det. Conde did not see § 87(2)(b) becoming irate with the Queens DA detectives. He did not see the Queens DA detectives do or say anything that calmed § 87(2)(b) down. Det. Conde did not see any physical contact between § 87(2)(b) and the Queens DA detectives apart from walking her to the vehicle and changing her handcuffs.

Det. Pilkington’s statement (**BR31**) was consistent with Sgt. Russell’s regarding § 87(2)(b)’s shift in demeanor upon exiting her apartment. When she arrived at the Queens DA detectives’ vehicle, Det. Pilkington saw someone show her a copy of her warrant. § 87(2)(b) calmed down when she was taken into the Queens DA’s custody, but Det. Pilkington did not see what caused that or how she was placed into the vehicle. He did not see § 87(2)(b) interacting with the Queens DA detectives.

Det. Dunn (**BR11**) described the officers’ interactions with § 87(2)(b) as pleasant. He did not remember seeing any interactions between the Queens DA detectives and § 87(2)(b).

Det. Schulman (**BR12**) stated that § 87(2)(b) appeared upset with the Newburgh PD, as well as the Queens DA detectives. When they met with the Queens DA detectives, they switched § 87(2)(b)’s handcuffs. Det. Schulman did not see any further interaction with the Queens DA detectives and § 87(2)(b).

Det. McGee (**BR13**) stated that § 87(2)(b) became upset upon seeing the Queens DA detectives—screaming at them and using profanity. The Queens Warrants Squad transferred custody to the Queens DA detectives. Det. McGee did not see them change § 87(2)(b)’s handcuffs or the process of her being placed in the DA detectives’ vehicle. Det. McGee did not witness § 87(2)(b) calm down after seeing the Queens DA detectives. He did not see the Queens DA detectives make physical contact with § 87(2)(b).

PO Post (**BR14**) did not see any interaction between § 87(2)(b) and either the Queens DA detectives.

The Queens DA DD5s pertaining to this case note that Det. McNelis was the detective in charge of § 87(2)(b)’s case. DD5 #7, which reflects the events when § 87(2)(b) was apprehended, notes that § 87(2)(b) requested a kiss from Det. McNelis when the Queens Warrants Squad transferred custody and again when she was placed in the police vehicle (**BR05**). Det. McNelis provided a video taken when transporting § 87(2)(b) to Queens Central Bookings (**BR26, BR27**); however, the footage does not include any pertinent footage.

Patrol Guide Procedure 208-42 notes that when arresting a person for whom a warrant has been issued, officers must inform the defendant of the warrant and offense charged, present the warrant, announce authority, and purpose, and make a forced entry into premises, as necessary (**BR17**).

Patrol Guide Procedure 203-09 notes that officers are required to interact with members of

public in a professional manner (BR20).

Patrol Guide Procedure 205-36 notes that federal, state and city laws, as well as Department policy, prohibit sexual harassment on behalf of New York City Police Department employees. Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature. Conduct which can, in certain circumstances, be considered sexual harassment includes, but is not limited to, sexually suggestive remarks, pictures, gesturing, verbal harassment or abuse of a sexual nature, subtle or direct propositions for sexual favors, and any unnecessary or unwanted touching, patting, or pinching (BR21).

Patrol Guide Procedure 210-01 notes, under sexual assault and sexual harassment of prisoner, that the Department has a zero tolerance policy toward all forms of sexual assault and sexual harassment of prisoners by other prisoners or any other person (BR22).

New York Consolidated Laws, Penal Law - PEN § 130.05 (3(j)) notes that an individual that is detained or otherwise in the custody of a police officer cannot consent to a sexual act (BR29).

Det. McNelis and Det. Maser consistently denied that § 87(2)(b) requested to see a copy of her warrant, which directly conflicts with § 87(2)(b)'s statement. The patrol guide does not specify who has to present an individual with their arrest warrant, including a circumstance where two parties, such as the Queens DA and the Queens Warrants Squad, were involved in the execution of the warrant. § 87(2)(g)

Although the Queens Warrants Squad members did not see any physical contact between § 87(2)(b) and Det. McNelis, apart from securing her handcuffs and placing her in a vehicle, Det. McNelis, § 87(2)(b) and Det. Maser all acknowledged that Det. McNelis kissed § 87(2)(b) on the cheek at least once prior to leaving for central bookings. The New York CLS notes that an individual in police custody is incapable of providing consent to a sexual act. Despite the dispute regarding whether § 87(2)(b) requested the kiss(es), it is undisputed that § 87(2)(b) was handcuffed and in custody of the Queens DA detectives when the sexual act occurred, which made any request of a sexual nature from § 87(2)(b) nonconsensual, and, consequently, any sexual acts performed on § 87(2)(b) by Det. McNelis, or any other officer, inappropriate. Additionally, regardless of whether the kiss(es) successfully de-escalated the situation, the patrol guide prohibits members of service from committing acts of a sexual nature with prisoners. § 87(2)(g)

§ 87(2)(b) alleged that Det. McNelis placed a piece of gum in her mouth, which Det. McNelis did not recall occurring. Det. Maser, who was also present, did not see any physical interaction between § 87(2)(b) and Det. McNelis while at the rear of the vehicle. Although the alleged action may qualify as a sexual gesture, which is strictly prohibited in the NYPD given that § 87(2)(b) was in police custody, front-cuffed, and thereby in a position to put the gum in her own mouth, § 87(2)(g)

Allegation (K) Abuse of Authority: On May 28, 2021, at Queens Central Bookings, Detective Michael McNelis forcibly touched § 87(2)(b)

§ 87(2)(b) stated (BR02) that upon her arrival at Queens Central Bookings, Det. McNelis,

and Det. Maser removed her handcuffs and fastened them behind her back. While standing at the rear of the vehicle, Det. McNelis stood very close behind § 87(2)(b) with a small distance between their bodies. Det. McNelis pulled § 87(2)(b)'s pants up by the waistband, which she defined as a "wedgie." § 87(2)(b)'s pants were not falling down, nor did she request for Det. McNelis to lift her pants. Det. Maser was present for the encounter outside of the vehicle. § 87(2)(b) felt exploited by Det. McNelis's actions.

Det. McNelis (BR03) (BR19) stated that he did not remember what § 87(2)(b) was wearing during this incident. When they arrived at Queens Central Bookings, he did not recall the conditions of § 87(2)(b)'s clothing. She was still front-cuffed, and Det. McNelis did not notice anything out of the ordinary about her clothes when he escorted § 87(2)(b) out of the vehicle. He was not aware of any of her clothing becoming dislodged or needing adjusting. He did not recall § 87(2)(b) requesting to have her clothing adjusted. He did not recall lifting her pants by the waistband or adjusting § 87(2)(b)'s clothes at any point. Det. McNelis did not recall making any kind of physical contact with § 87(2)(b)'s clothing. Det. McNelis did not recall what role, if any, Det. Maser played in assisting him in removing § 87(2)(b) from the vehicle.

Det. Maser (BR08) stated that, upon arrival at Queens Central Bookings, Det. McNelis helped § 87(2)(b) out of the vehicle, on the passenger side. Det. Maser exited the vehicle on the driver's side and did not see her and Det. McNelis's interaction immediately upon her exit of the vehicle. Det. Maser did not notice anything about § 87(2)(b)'s clothes, including if she looked disheveled. Det. Maser did not see Det. McNelis adjusting § 87(2)(b)'s clothing.

Det. McNelis provided a video taken when transporting § 87(2)(b) to Queens Central Bookings (BR26, BR27); however, the footage does not include any pertinent footage.

Patrol Guide Procedure 203-09 notes that officers are required to interact with members of public in a professional manner (BR20).

Patrol Guide Procedure 205-36 notes that federal, state and city laws, as well as Department policy, prohibit sexual harassment on behalf of New York City Police Department employees. Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature. Conduct which can, in certain circumstances, be considered sexual harassment includes, but is not limited to, sexually suggestive remarks, pictures, gesturing, verbal harassment or abuse of a sexual nature, subtle or direct propositions for sexual favors, and any unnecessary or unwanted touching, patting, or pinching (BR21).

Patrol Guide Procedure 210-01 notes, under sexual assault and sexual harassment of prisoner, that the Department has a zero tolerance policy toward all forms of sexual assault and sexual harassment of prisoners by other prisoners or any other person (BR22).

New York Consolidated Laws, Penal Law – PEN § 130.52(2) notes that a person is guilty of forcible touching when such person intentionally, and for no legitimate purpose subjects another person to sexual contact for the purpose of gratifying the actor's sexual desire and with intent to degrade or abuse such other person (BR33).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Det. McNelis has been a member of service for 24 years and this is the first complaint to which he has been named a party.

- Sgt. Russell has been a member of service for 16 years. He has been named the subject in two other CCRB complaints, § 87(2)(g), § 87(4-b)
 - § 87(2)(g), § 87(4-b)
 - § 87(2)(g)
- Det. Conde has been a member of service for 15 years. He has been named the subject in 14 other CCRB complaints and 28 allegations, one of which has been substantiated:
 - 201504067 involves a substantiated allegation of refusal to process civilian complaint. The NYPD recommended and imposed Command Discipline A.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- On July 6, 2022, the Office of the New York City Comptroller confirmed that § 87(2)(b) has not filed a notice of claim pertaining to this incident (BR30).
- § 87(2)(b)

Squad: 10

Investigator:	<u>Jessica Russo</u>	<u>Inv. Jessica Russo</u>	<u>07/27/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>07/27/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date